

26VECV01883 26VECV01883

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-02

Motion: DEFENDANT DAVID SHIELD SECURITY INC.'S DEMURRER TO AND MOTION TO STRIKE PLAINTIFFS' COMPLAINT

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Case Number: 26VECV01883 Hearing Date: September 2, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TALI LEE, an

individual; and DANNY LEE,

an individual,

Plaintiffs,

vs.

HAMAKOM, a California nonprofit corporation;

MICHAEL CANTOR, an

individual; DAVID SHIELD SECURITY,

INC., a California corporation; and DOES

1

10, inclusive,

Defendants.

CASE NO: 26vecv01883

[TENTATIVE]

ORDER RE:

DEFENDANT

DAVID SHIELD

SECURITY

INC.'S DEMURRER TO AND MOTION TO STRIKE PLAINTIFFS' COMPLAINT

Dept. W

8:30 a.m.

September 2, 2026

[TENTATIVE] ORDER: The Court

SUSTAINS Moving Defendant David Shield Security Inc.'s Demurrer to the first and second causes of action with leave to amend. The Court also DENIES Moving Defendant's Motion to Strike as MOOT.

Background

This case arises out of the fallout of a perceived slight by Plaintiffs against Defendant Michael Cantor.

Plaintiffs in this case are Tali and Danny Lee. The Lees are a married couple with a three-year-old-child. Plaintiffs are devoutly religious, and, until recently, were members of the Hamakom congregation. Plaintiffs' son also attended Hamakom's preschool, until his recent expulsion.

Defendants are Hamakom, a synagogue and religious private preschool; Michael Cantor, the executive director of Hamakom; and Moving Defendant David Shield Security Inc., the private security company hired to protect the Hamakom campus.

Plaintiffs allege that on November 12, 2025, Plaintiff Tali was attempting to pick her son up from preschool. When Plaintiff arrived, the

app-controlled security gate was not functioning properly. Out of frustration, Plaintiff sent a text to the parent group chat where she complained about the gate being broken. Plaintiff wrote that, "Whoever wasted their money on this app for the gate is really stupid." Minutes later, Defendant Michael Cantor, the executive director of Hamakom texted Plaintiff Tali personally, writing, "If you have issues with our security protocols and systemic implementations, might I suggest you come and address them with me face to face? I am the 'really stupid' person who 'wasted' our resources on this system. Seriously, please be mindful of the fact that you are sharing your opinions beyond the audience you might expect."

Plaintiffs allege that, following this interaction, Defendant Michael Cantor retaliated against them and their son. Specifically, Plaintiffs allege that two days later, Plaintiff Danny Lee tried to drop their son off for preschool. Mr. Lee was allegedly stopped by a private security guard working for Moving Defendant David Shield Security Inc. This guard informed Plaintiff that they had been ordered to stop and search Plaintiff's vehicle. Plaintiff allegedly felt compelled to consent to this search, and so he and his son sat outside in the rain while Moving Defendant's employees searched the vehicle. Allegedly, the guard who conducted this search informed Plaintiff that Defendant Michael Cantor "had not told him to look for anything in particular." Plaintiff Tali Lee alleges that when she heard about this encounter, she felt deeply distressed and humiliated. Plaintiff allegedly suffered a panic attack the next day.

Plaintiffs allege that Defendant Cantor's retaliation escalated from there. Two days after the alleged panic attack, Plaintiffs were informed that they were barred from entering the Hamakom campus and had to drop their son off at the security gate. Plaintiffs allege that this caused them great emotional harm.

Three days later, after a meeting with Defendant Cantor, Plaintiffs and their son were allegedly expelled from the Hamakom community.

On March 30, 2026, Plaintiffs filed suit against Defendants, alleging four causes of action: 1) IIED; 2) Negligence; 3) Breach of Contract; and 4) Breach of the Implied Covenant of Good Faith and Fair Dealings. Only the first two claims are alleged against Moving Defendant.

On July 13, 2026, Moving Defendant David Shield Security, Inc. filed a demurrer and motion to strike Plaintiff's Complaint as to the first two causes of action.

The Court now hears these motions.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Moving Defendant provides the declaration of Alexander Harwin, who states that on June 10, 2026, he spoke with Plaintiffs' counsel to discuss the issues raised in these motions. (Harwin Decl. ¶ 2.) Unfortunately, the parties were not able to resolve these issues out of court. (Id. ¶ 3.) Thus, the Court finds Moving Defendant has met their meet and confer obligations.

Discussion

Demurrer

Moving Defendant David Shield Security, Inc. demurs to the two claims alleged against them for intentional infliction of emotional distress and negligence. (Demurrer, p. 3:6-17.) Specifically, Moving Defendant argues that Plaintiffs have failed to allege sufficient facts to establish these two claims as to David Shield Security, Inc. (Ibid.)

A demurrer tests the

legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (CCP §§ 422.10, 589; see, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the

demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pled in the complaint are assumed to be

true. (Id. at 994.) Thus, when analyzing the merits of Plaintiffs' claims, this Court must accept the alleged facts as true.

i)

First Cause of Action – Intentional Infliction of Emotional Distress

First, Moving Defendant demurs to Plaintiffs' claim of IIED, asserting that Plaintiffs have failed to allege facts sufficient to support this claim. (Demurrer, pp. 7:11-8:18.)

The elements of the tort of intentional infliction of emotional distress (IIED) are, "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, [quoting Cervantez v. J.C. Penney Co. (1979) 24 Cal.3d 579, 593].)

a) Extreme and Outrageous Conduct

Moving Defendant argues that Plaintiffs have failed to allege extreme and outrageous conduct. (Demurrer, p. 7:11-23.) Extreme and outrageous conduct is defined as conduct that is, "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 160–161.) Here, Plaintiffs allege that, "[Moving Defendants] engaged in extreme and outrageous conduct by forcing Danny and his child to be the only persons subjected to a humiliating and baseless search of their car in front of other preschool families dropping off their children on the morning of November 14, 2025." (Compl. ¶ 37.)

While the determination of whether conduct is "extreme or outrageous" is often left to the finder of fact, the Court may, as a threshold matter, determine whether the alleged conduct rises to this level on a demurrer. (Bock v.

Hanssen (2014) 225 Cal.App.4th

215, 235.) Here, the Court struggles to see how Moving Defendant's behavior qualifies as extreme and outrageous. While it is not clearly pled, Moving Defendant David Shield Security Inc. is a private security contractor hired by Defendant Hamakom. Moving Defendant's job is to provide security for this private organization. Presumably, their job duties include stopping individuals who want to enter the property of that organization. According to Plaintiffs' Complaint, an employee of Moving Defendant was ordered by their client, Defendant Michael Cantor, to stop and search Plaintiffs' vehicle before it entered Defendant Hamakom's private property. (Compl. ¶ 25.) Plaintiff Danny consented to this search. (Id. ¶ 26.) Thus, as alleged, Moving Defendant's outrageous conduct appears to be that they were asked by their contractor to perform their job duties, they did, and as a result, Plaintiffs suffered embarrassment in front of their peers. While this is an unfortunate outcome, liability for intentional infliction of emotional distress, "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (Rest.2d Torts, § 46, com. d.)" (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1122.) Thus, the Court does not find that, as alleged, Moving Defendant's actions amount to extreme and outrageous conduct.

Defendants Complaint and Opposition rely heavily on the fact that the underlying motivation for this search was Defendant Cantor's desire for retribution. (Compl. ¶ 24; see also, Opp. p. 4:1-4.) But no facts in this Complaint attribute that motivation to Moving Defendant David Shield Security Inc. (See generally, Compl.) Thus, while Plaintiffs may have alleged facts sufficient to support a claim of IIED against Defendant Cantor, they have not alleged sufficient facts as to Moving Defendant.

b) Intent

Additionally, moving Defendant argues that Plaintiffs have failed to allege facts establishing that Moving Defendant intended to cause Plaintiffs emotional harm through this search. (Demurrer, p. 8:11-18.) Here, Plaintiffs allege that, "Defendants engaged in this extreme and outrageous conduct with the intention of causing, or reckless disregard of the probability of causing, emotional distress to Tali and Danny, as well as their three-year-old son." (Compl. ¶ 38.) However, this is a conclusory pleading. For the purposes of a demurrer, conclusory allegation need not be accepted as true. (Freeman v. San Diego Assn. of Realtors (1999) 77 Cal.App.4th 171, 185 ["Although a court must on

demurrer accept as true properly pleaded facts, a demurrer does not admit contentions or conclusions of law or fact”].) Thus, the Court must look to Plaintiffs’ factual pleadings.

Here, Plaintiffs allege that the motivating force behind this search was that, “[Defendant] Cantor chose . . . to publicly humiliate Tali and Danny and traumatize their child.” (Compl. ¶ 24.) Specifically, Plaintiff alleges that Defendant Cantor ordered Moving Defendant’s employee to search Plaintiff Danny’s vehicle. (Id. ¶ 25.) There are no allegations that even suggest that Moving Defendant themselves had an intent or motivation to harm Plaintiffs with this search. (See generally, Compl.) Thus, taking these allegations as true, Plaintiffs have only alleged facts sufficient to show Defendant Cantor’s intent – not Moving Defendant’s. Thus, the Court finds that Plaintiff has failed to allege this element of IIED as well.

For these reasons, the Court SUSTAINS the Demurrer to Plaintiffs’ first cause of action as to Moving Defendant.

ii)

Second Cause of Action – Negligence

Next, Moving Defendant argues that Plaintiffs have failed to allege facts sufficient to support their claim of negligence. (Demurrer, p. 8:23-9:2.)

The elements of a negligence claim are well known: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) Moving Defendant argues that Plaintiffs have failed to allege that Moving Defendant owed them a specific duty, or that Moving Defendant breached that duty. (Demurrer, p. 8:23-9:2.) Having reviewed Plaintiff’s Complaint, the Court finds that Plaintiffs have not alleged either duty or breach as to Moving Defendants. (Compl. ¶¶ 44-55.) Thus, they have failed to allege facts sufficient to support this claim.

In their Opposition, Plaintiffs argue that they have properly pled negligent infliction of emotional distress under the “bystander theory”, which they assert only requires a showing that, “a plaintiff (1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers emotional distress beyond that which would be anticipated in a disinterested witness.” (Opp. p. 4:21-25 [citing Thing v. La Chusa (1989) 48 Cal. 3d 644, 647].)

The Court disagrees on the law. Under California law, NIED is not an independent tort but rather a claim of ordinary negligence, where the traditional elements of duty, breach of duty, causation, and damages still apply. (See, e.g., *Spates v. Dameron Hospital Assn.* (2003) 114 Cal.App.4th 208, 213.) Through this framework, the “bystander theory” is better seen as an alternative method of establishing causation and damages, rather than an alternative to a traditional negligence analysis. Thus, Plaintiffs still need to allege duty and breach. Given that they have not, the Court finds that Plaintiffs have failed to allege sufficient facts to support this claim as well.

iii)

Summary

In summary, the Court finds that Plaintiffs have failed to allege facts sufficient to support their claims of IIED and NIED against Moving Defendant. Therefore, the Court SUSTAINS Moving Defendants Demurrer as to both causes of action, and grants Plaintiffs leave to amend.

Motion to Strike

Additionally, Moving Defendants move to strike three different portions of Plaintiffs' Complaint. (Mot. to Strike, p. 2:4-19.) Specifically, Moving Defendants move to strike multiple references to malice, oppression, and punitive damages. (Id. p. 8:8-19.)

Under CCP § 436, “[t]he court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strikeout any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (CCP § 436.)

As explained above, the Court agrees that Plaintiffs have failed to allege facts sufficient to establish any level of intent by Moving Defendant. However, the Court has already granted Plaintiffs leave to amend. Thus, this Motion to Strike is MOOT.

For these reasons, the Court DENIES Moving Defendant's Motion to Strike

as MOOT.

Conclusion

The Court SUSTAINS Moving Defendant

David Shield Security Inc.'s Demurrer to the first and second causes of action

with leave to amend. The Court also DENIES Moving Defendant's Motion to Strike as MOOT.

IT

IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 2, 2026

Judge of the Superior Court